

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.,

Complainants,

– vs. –

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV,

Respondents.

**COMPLAINANTS’ REPLY TO RESPONDENTS’ RESPONSE TO COMPLAINANTS’
MOTION TO COMPEL AND OPPOSITION TO RESPONDENTS’ CROSS-MOTION
TO COMPEL**

Pursuant to Rules 69 and 71 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq. respectfully submit this Reply to Respondents’ Response To Complainants’ Motion to Compel and Opposition to Respondents’ Cross-Motion to Compel.

This Reply is respectfully submitted as a response to the incomprehensible and incoherent submission of the respondents which purports to oppose Complainants’ Motion to Compel.

In the first instance, it should be noted that despite having previously been placed on notice that there is a distinction between the undersigned counsel for complainants and his clients, that Mr. Pogil can no longer reasonably be considered innocently ignorant of his continued personal *ad hominem* attacks on the undersigned in his motion papers. Put simply, “Mr. Nussbaum” is not, and never has been “the movant” in these proceedings, or any other proceedings involving respondents herein. That said, and to the extent that once stripped of irrelevant legal-babble,

respondents' latest submission largely says *nothing*; accordingly, little reply is warranted or merited.

Without engaging in an *ad nauseum* regurgitation of the arguments already set forth in complainants' Motion to Compel, it is sufficient to state that respondents have abjectly failed to address the deficiencies in their responses to Complainants' First Request for Production of Documents, which are identified in detail in complainants' discovery deficiency letter of February 20, 2021 (a copy of which was annexed as Appendix "C" to Complainants' Motion to Compel).

To the extent that respondents' opposition to the Motion Compel further fails to justify respondents' refusal to provide the documents requested, and/or a Certification that no such documents exist, the Presiding Officer may summarily grant the relief requested by Complainants, and order that the subject documents and/or Certification be provided by a date certain. This will ensure that the parties' final briefings in this matter (to wit: the Proposed Findings of Fact and Conclusions of Law) will not contain misleading, nebulous and/or ambiguous explanations by respondents on the issue of their alleged compliance with section 41102(c) of the Shipping Act (which none such exists).

In that respondents have failed to produce certain documents, it is respectfully requested that ancillary to complainants' instant requested relief seeking an order compelling certain documents, that as appropriate to certain requests, respondents should now be directed to provide a Certification, executed by respondents and *not* their counsel, attesting to the following: (1) not being in possession of the subject documents; (2) the search performed for said documents including where, when, and by whom; and (3) the last known whereabouts of said documents, or in the alternative, a statement averring as to having never been in possession of same.

To the extent that respondents purport to “cross-move” to compel the production of documents by complainants in two (2) conclusory sentences on page “6” of their brief, the Presiding Officer may summarily disregard that purported “cross-motion” due to respondents’ abject failure to comply with the requirements of §502.150 subparagraphs (2)(i) – (v) in that respondents have failed to provide the documents required by Rule 150 for a motion to compel (*inter alia*, a certification that the moving party has conferred in good faith or attempted to confer with the party failing to respond to discovery requests). Additionally, respondents admit that complainants actually provided written responses to their demands, but are simply unhappy with the substance of the response.

In conclusion, and based upon the foregoing, together with that set forth in complainants’ original motion, it is respectfully requested that for the reasons stated therein, the Presiding Officer rule on complainants’ pending Motion to Compel, and that respondents, based on their lack of opposition, now be directed to provide the documents requested and/or a Certification as appropriate indicating that such documents do not exist.

WHEREFORE, it is respectfully requested that complainants’ motion be in all respects granted, that respondents’ cross-motion be denied, together with such other and further relief as the Presiding Officer may deem just and proper under the circumstances.

Dated: March 8, 2021
Brooklyn, New York

Respectfully Submitted,

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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' REPLY TO RESPONDENTS' RESPONSE TO COMPLAINANTS' MOTION TO COMPEL AND OPPOSITION TO RESPONDENTS' CROSS-MOTION TO COMPEL** upon Respondents' Counsel at the following address:

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Dated: Brooklyn, New York
March 8, 2021